

5. 9:00 AM CASE NUMBER: C24-00605

CASE NAME: VIKAS PRAKASH VS. WILSON AQUINO

HEARING ON SUMMARY MOTION

FILED BY: AQUINO, WILSON

TENTATIVE RULING:

On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 30, 2026.**

6. 9:00 AM CASE NUMBER: C24-01669

CASE NAME: DIEGO RIVEROS VS. CHRISTOPHER MARCONI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DANIEL A. MULLER**

FILED BY: MARCONI, CHRISTOPHER

TENTATIVE RULING:

Daniel A. Muller ("Counsel") filed a Motion to be Relieved as Counsel on November 3, 2025 (the "Motion to be Relieved as Counsel"). The matter was set for hearing on March 23, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant Christopher Marconi ("Defendant").

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship due to payment and communication issues. See Declaration filed November 3, 2025, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The hearing set for April 29, 2026 regarding an Order to Show Cause (OSC) issued to Counsel is VACATED and the OSC DISCHARGED.
3. Counsel to submit a proposed form of order after hearing.

7. 9:00 AM CASE NUMBER: C24-01921

CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO

***HEARING ON MOTION IN RE: SEAL PORTIONS OF DEC OF KRISTEN T GALLAGHER IN SUPPORT OF DEF MOTION TO DISQUALIFY PLTFS COUNSEL FOR UNAUTHORIZED DOCUMENT COLLECTION AND POSSESSION OF TAX RECORDS**

FILED BY: EDEN VALLEY RANCH LLC

TENTATIVE RULING:

Defendants David Seeno and Gold Coast Pipelines, Inc. (“Defendants”) filed a Motion to Seal on November 3, 2025 (the “Motion to Seal”). The Motion to Seal was set for hearing on March 23, 2026. The motion is unopposed.

Background

This motion seeks to seal portions of the Declaration of Kristen T. Gallagher in Support of Defendants’ Motion to Disqualify Plaintiffs’ Counsel for Unauthorized Document Collection and Possession of Tax Records and for Sanctions (the “Portions to be Sealed”). The subject pleading was filed on November 3, 2025 with the Portions to be Sealed redacted from the public filing.

The Court has already heard and decided the underlying motion to which the pleading relates. It does not appear that the Court ruled on the Motion to Seal as past of that ruling. See Order entered February 5, 2026.

Analysis

Under the California Rules of Court, “[u]nless confidentiality is required by law, court records are presumed to be open.” Rule 2.550(c) of the California Rules of Court (“CRC”). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The supporting declaration describes that the moving parties only seek to seal certain very specific portions of the subject pleadings. See Declaration of Kristen T. Gallagher, ¶¶3-5.

The unredacted versions of both pleadings were lodged for the Court's review. The redacted materials are represented to include confidential information that presents a risk of serious personal or other injury to the parties to this action and other third parties if disclosed publicly. *Id.* at ¶13. The Portions to be Sealed appear narrowly tailored.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

Disposition

The Court finds and orders as follows:

1. The Motion to Seal is GRANTED. The Court orders the sealing of Portions to be Sealed that were filed provisionally under seal.
2. The Court shall issue the order after hearing.

8. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) PROPOUNDED ON DEFENDANT MARK BECKER, INC.; REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$3,398.86;**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

ATTACHMENT A

LINES 8-16 and 19-20: MICHAEL HOFFMAN, ET AL. VS. PETER DOCTER, ET AL.
(C24-00689)

Plaintiff Michael Hoffman ("Plaintiff") filed eleven separate discovery motions on September 29 and 30, 2025 to compel further responses to various discovery requests propounded upon the defendants. Collectively, these motions are referred to herein as the "Motions to Compel Further Responses." The Motions to Compel Further Responses were set for hearing on various dates and ultimately consolidated for hearing on the March 23, 2026 calendar by the Court. See Order entered February 19, 2026. The Court also directed the parties to confer further and advise as to the items that remain in dispute.

The parties filed a Joint Report on March 12, 2026 that details the particular discovery requests that remain in dispute, as detailed further below. The Court address each of them in turn.

Background

The discovery requests which remain at issue in the Motions to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. **Special Interrogatories Nos. 7, 9-14, 19-26, 32, 34 and 35 (Set One)** propounded by Plaintiff